



Licensing (Amendment) Act 1981

1981 CHAPTER 40

An Act to amend the Licensing Act 1964 in relation to special hours certificates.

[27th July 1981]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For subsection (4) of section 81 of the Licensing Act 1964 there shall be substituted the following subsection—

“(4) At any time while a special hours certificate for any premises or for part of any premises is in force, the chief officer of police may apply to the licensing justices or, if it was granted under section 78 of this Act, to the magistrates' court, for the revocation of the certificate on the ground that the revocation is expedient by reason of the occurrence of disorderly or indecent conduct in the premises or part to which the certificate relates; and if the licensing justices or the magistrates' court, as the case may be, are satisfied that the ground of the application is made out, they shall revoke the certificate.”

Special hours
certificates:
amendment of
provisions as
to revocation.
1964 c. 26.

Procedure on
applications
to justices
under section
81A(2) of
Licensing
Act 1964.

2. In section 91 of that Act (procedure of licensing justices) for the words "or 81" there shall be substituted the words ", 81 or 81A(2)".

Short title,
commencement
and extent.

3.—(1) This Act may be cited as the Licensing (Amendment) Act 1981.

(2) This Act shall come into operation on such day as the Secretary of State may by order made by statutory instrument appoint.

(3) This Act does not extend to Scotland or Northern Ireland.